

26VECV00483 26VECV00483

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-18

Motion: DEFENDANT'S DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 26VECV00483 Hearing Date: August 18, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NELLI BERBERYAN,

AN INDIVIDUAL,

Plaintiff,

vs.

JAGUAR LAND ROVER NORTH,

AMERICA, LLC, A LIMITED,

LIABILITY COMPANY; AND DOES 1-

30.

Defendants.

CASE NO: 26VECV00483

[TENTATIVE]

ORDER RE:

DEFENDANT'S
DEMURRER TO FIRST AMENDED COMPLAINT

Dept. W

8:30 a.m.

August 18, 2026

[TENTATIVE] ORDER: The Court continues this motion to September 22, 2026. The parties are ordered to meet and confer in accordance with CCP § 430.41(a) and must submit a joint declaration confirming and outlining these efforts by September 16, 2026.

Background

This is a lemon law case. Plaintiff Nelli Berberyan alleges that on April 28, 2023, she leased a 2023 Range Rover manufactured by Defendant Jaguar Land Rover North America, LLC. Plaintiff alleges that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On January 26, 2026, Plaintiff filed suit against Defendant.

On May 12, 2026, Plaintiff filed a First Amended Complaint, alleging three causes of action: 1) breach of express warranty under Song-Beverly; 2) breach of the implied warranty under Song-Beverly; and 3) negligent repair.

Now, Defendant Jaguar Land Rover North America, LLC, demurs to the third cause of action for negligent repair, arguing that this claim is barred by the economic loss rule, and that Plaintiff fails to allege sufficient facts to support this cause of action.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in

the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3) [emphasis added].)

Here, Defendant has failed to meet and confer properly. Defendant provides the declaration of their attorney Bryan Roth, who states that, "[o]n May 22, 2026, I sent an email to counsel for Plaintiff to meet and confer regarding the demurrer that Defendants intended to file. The email laid out in detail the various pleading issues pertinent to this motion. A true and correct copy of my meet and confer communication is attached hereto as Exhibit A." (Roth Decl. ¶ 2 [emphasis added].) Based on this declaration, the Court concludes that Defendant has failed to meet and confer in person or telephonically, as required by statute.

Therefore, the Court continues this motion to September 22, 2026. The parties are ordered to meet and confer in accordance with CCP § 430.41(a) and must submit a joint declaration confirming and outlining these efforts by September 16, 2026.

Conclusion

The Court continues this motion to September 22, 2026. The parties are ordered to meet and confer in accordance with CCP § 430.41(a) and must submit a joint declaration confirming and outlining these efforts by September 16, 2026.

IT
IS SO ORDERED, Defendant TO GIVE NOTICE.

August 18, 2026

Judge of the Superior Court